

Before the
FEDERAL MARITIME COMMISSION

Docket No. 26-08

EALYTEX GLOBAL INC.

v.

COSCO SHIPPING LINES CO., LTD.

JOINT STATUS REPORT

Complainant Ealytex Global Inc. (“EGI” or “Complainant”) and Respondent COSCO Shipping Lines Co., Ltd. (“COSCO” or “Respondent”) (together, the “Parties”) jointly submit this status report to advise the Presiding Officer of the status of the refund process and of discovery following the Order Denying Joint Motion to Stay Discovery Without Prejudice, served August 11, 2026 (the “August 11 Order”).

Since the August 11 Order, COSCO has completed the refunds corresponding to the waived charges on fourteen of the seventeen containers at issue. The refunds for the remaining three containers—OOCU7565925, SEGU4233144, and CCLU7318741—are awaiting final approval at COSCO’s headquarters. COSCO has submitted an expedited request for that approval and will promptly advise the Presiding Officer, and provide confirming documentation, upon completion.

With respect to discovery, in lieu of renewing their motion to stay, the Parties stipulated, as permitted by the Commission’s rules, see, e.g., 46 C.F.R. § 502.145(b)(2), to extend the

deadlines to respond to the pending discovery requests through September 15, 2026. On September 16, 2026, the Parties agreed to a further extension of fifteen (15) calendar days, through September 30, 2026. All other deadlines, including the December 3, 2026 close of discovery under 46 C.F.R. § 502.141(g), are unaffected.

The Parties have conferred regarding disposition. Complainant has indicated that it is open to dismissing the claims relating to the containers for which refunds have been completed, and the Parties have agreed to address the disposition of this proceeding as a whole, rather than piecemeal, upon completion of the remaining refunds. The Parties will file a further joint status report promptly upon completion of the remaining refunds and, in any event, no later than September 30, 2026.

Dated: September 17, 2026

Respectfully submitted,

/s/ Nicholas Webb
JEFFREY/FENNEMAN LAW + STRATEGY,
PLLC
Rebecca A. Fenneman
Eric C. Jeffrey
Kaya C. Massey
Nicholas L. Webb
700 12th Street, NW, Suite 700
Washington, DC 20005
Tel: (202) 904-2301

**ATTORNEYS FOR RESPONDENT,
COSCO SHIPPING LINES CO., LTD.**

/s/ Brian Fredericks
LAW OFFICE OF BRIAN P. FREDERICKS, P.C.
Brian P. Fredericks, Esq.
1330 Avenue of the Americas, 23rd Flr.
New York, NY 10019
Tel: (212) 653-0958

**ATTORNEYS FOR COMPLAINANT,
EALYTEX GLOBAL INC.**

CERTIFICATE OF SERVICE

I certify that on this 17th day of September, 2026, a true and correct copy of the foregoing JOINT STATUS REPORT was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 as follows:

ATTORNEYS FOR COMPLAINANT:
LAW OFFICE OF BRIAN P. FREDERICKS, P.C.
Brian P. Fredericks, Esq.
brian@frederickslawpc.com

/s/ *Nicholas Webb*

Nicholas L. Webb